

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPL064324: SAMUEL AGAZARYAN vs MERCEDES-BENZ USA, LLC, A
DELAWARE LIMITED LIABILITY COMPANY, et al.**

08/31/2026 in Department 44

Motion to Compel Binding Arbitration

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Mercedes-Benz USA, LLC’s (“MBUSA” or “Defendant”) Motion to Compel Binding Arbitration (“Motion”)

Tentative Ruling:

Defendant Mercedes-Benz USA, LLC’s Unopposed Motion to Compel Binding Arbitration is GRANTED.

A. Request for Judicial Notice

While it is unnecessary for Defendant to request judicial notice of documents on file in this action, the Court nonetheless GRANTS Defendant’s request for judicial notice of Plaintiff Samuel Agazaryan’s Complaint filed April 3, 2026 pursuant to Evidence Code section 452, subdivision (d).

B. Motion to Compel Arbitration

MBUSA has established the existence of a written agreement to arbitrate. Plaintiff electronically signed the June 2, 2024 Motor Vehicle Lease Agreement and expressly acknowledged that he received and read the entire Lease and agreed to its terms, including the arbitration disclosures.

The arbitration provision expressly identifies Mercedes-Benz USA, LLC as a “Third-Party Beneficiary” and permits a Third-Party Beneficiary to elect arbitration. MBUSA therefore is entitled to enforce the arbitration provision.

The arbitration provision expressly encompasses “any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue.” The provision then provides that such disputes “shall,” at a party’s election, “be resolved by a neutral, binding arbitration and not by a court action.” The arbitrator thus decides issues of scope and arbitrability of any issue.

Plaintiff Samuel Agazaryan (“Plaintiff”) has filed no opposition and has not established any defense to enforcement.

C. Order

Plaintiff and MBUSA are ordered to submit Plaintiff’s claims against MBUSA to binding arbitration in accordance with the arbitration provision contained in Plaintiff’s Motor Vehicle Lease Agreement.

The action is STAYED pursuant to Code of Civil Procedure section 1281.4 pending completion of arbitration.

The Court declines to order Plaintiff’s claims against Defendant Swickard Thousand Oaks Corporation dba Mercedes-Benz of Thousand Oaks to arbitration because Swickard has not appeared, joined the motion, or independently requested arbitration.

The Court sets a status conference regarding arbitration on **August 30, 2027 at 8:30 a.m.** The parties are ordered to submit a joint status conference at least 10 days prior to the conference.

Defendant Mercedes-Benz USA, LLC shall give notice.